

(3) The principal Act shall have effect, and shall be deemed for all purposes to have had effect, as if it had originally been enacted as amended by the preceding subsections of this section:

Provided that, where any works being such as aforesaid have been begun during the period beginning with the appointed day for the purposes of that Act and ending with the thirteenth day of December, nineteen hundred and fifty, they shall, whether completed during that period or not, be treated for the purposes of that Act as if planning permission had been granted in respect thereof unconditionally.

*Citation, etc.*

4.—(1) This Act may be cited as the Town and Country Planning (Amendment) Act, 1951. Short title,  
citation and  
construction.

(2) Sections one and two of this Act shall be construed as one with the Town and Country Planning Act, 1947, and that Act and those sections may be cited together as the Town and Country Planning Acts, 1947 and 1951.

(3) Section three of this Act shall be construed as one with the Town and Country Planning (Scotland) Act, 1947, and that Act and that section may be cited together as the Town and Country Planning (Scotland) Acts, 1947 and 1951.

## CHAPTER 20

An Act to transfer to the Secretary of State responsibility for the Overseas Food Corporation; to amend the law regulating the functions, constitution and finances of that Corporation; to transfer to the Minister of Food certain rights of that Corporation in relation to the Queensland-British Food Corporation; and for purposes connected with the matters aforesaid.

[21st March 1951.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this Act, the functions of the Minister of Food under the Overseas Resources Development Act, 1948 (in this Act referred to as "the principal Act") shall be transferred to the Secretary of State at the commencement of this Act. Transfer to  
Secretary of  
State of  
responsibility  
for Overseas  
Food  
Corporation.

(2) Subsection (2) of section six of the principal Act (which defines the expression "the responsible Minister" in relation to 11 & 12 Geo. 6.  
c. 15.

the Colonial Development Corporation and the Overseas Food Corporation) shall cease to have effect, and for any reference in the said Act to the responsible Minister there shall be substituted a reference to the Secretary of State.

(3) References to the Minister of Food in any regulation, scheme, deed, agreement or other instrument affecting the Overseas Food Corporation shall, so far as necessary for the purpose or in consequence of the foregoing provisions of this section, be construed as references to the Secretary of State; and any regulation, direction, determination, appointment or other thing made, given or done by the Minister of Food before the commencement of this Act in relation to the said Corporation shall have effect as if made, given or done by the Secretary of State.

(4) The foregoing provisions of this section shall not affect any obligations or rights of the Minister of Food under section five of the principal Act (which made provision for the transfer to the Overseas Food Corporation of certain assets and liabilities of that Minister); and in relation to the financial year ending immediately before the commencement of this Act section eighteen of that Act (which relates to accounting for receipts of the responsible Minister under that Act) shall have effect as originally enacted and not as amended by those provisions.

Functions and  
constitution  
of Overseas  
Food  
Corporation.

2.—(1) The Overseas Food Corporation shall be charged with the duty of securing the investigation, formulation and carrying out of projects for production or processing in colonial territories in East Africa of foodstuffs or agricultural products other than foodstuffs, and for the marketing of foodstuffs or such products.

(2) Subsection (1) of section three of the principal Act shall cease to have effect so far as it regulates the duty of the Overseas Food Corporation; and subsection (2) of that section (which confers powers on the Corporation for the purpose of the discharge of their duty under subsection (1) of that section) shall have effect as if for the reference to the said subsection (1) there were substituted a reference to subsection (1) of this section.

(3) The Overseas Food Corporation shall consist of a chairman and such other members, not being less than two or more than six, as the Secretary of State may from time to time determine.

(4) Subsection (1) of section four of the principal Act (which regulates the constitution of the Overseas Food Corporation) shall cease to have effect and subsection (2) of that section, and the Schedule to the principal Act in its application to the said Corporation, shall have effect as if the words "the deputy chairman", wherever those words occur, were omitted.

3.—(1) It shall be the duty of the Overseas Food Corporation Financial so to exercise and perform their functions as to secure, as soon provisions. as practicable, that their revenues are not less than sufficient to meet all sums properly chargeable to revenue account, taking one year with another.

(2) The Secretary of State may out of moneys provided by Parliament pay to the Overseas Food Corporation such sums in respect of expenses of that Corporation as he may with the consent of the Treasury determine.

(3) The revenues of the Overseas Food Corporation for any financial year shall be applied by the Corporation in such manner as the Secretary of State, with the approval of the Treasury, may direct, and any such direction may require the whole or any part of those revenues to be paid into the Exchequer.

(4) Except as provided by this section, no payment shall be required to be made by the Overseas Food Corporation under section thirteen of the principal Act in respect of advances made to that Corporation at any time before the commencement of this Act, and all such advances shall be written off accordingly.

(5) The provisions of subsection (4) of this section shall not apply to any such advances as aforesaid to the extent of any sum due to the Overseas Food Corporation in respect of advances made by that Corporation to the East African Railway and Harbours Administration; and the provisions of that subsection shall be without prejudice to the following provisions of this Act relating to the Queensland Corporation.

(6) Sections eleven, twelve, fourteen, fifteen and seventeen of the principal Act shall cease to have effect in relation to the Overseas Food Corporation; and paragraph 9 of the Schedule to that Act shall have effect in relation to that Corporation as if the words "borrowing in accordance with the provisions of this Act in that behalf" were omitted.

4.—(1) As from the commencement of this Act there shall be transferred to the Minister of Food all rights of the Overseas Food Corporation in respect of advances made by that Corporation to the Queensland Corporation; and the Overseas Food Corporation shall take all such steps within their power as may be necessary for giving full effect to the said transfer. Provisions as to the Queensland Corporation.

(2) The Minister of Food may with the consent of the Treasury make to the Queensland Corporation advances by way of loan on such terms as he thinks fit.

(3) The Minister of Food shall, as soon as practicable after he receives a copy of any annual report published by the Queensland Corporation after the commencement of this Act in accordance with the Queensland Act, or of any statement of accounts of that

Corporation or report by the auditors thereon, which may be prepared or made after the commencement of this Act in pursuance of the Queensland Act, lay a copy before each House of Parliament.

(4) Any expenses of the Minister of Food in making advances under subsection (2) of this section shall be defrayed out of moneys provided by Parliament; and any sums received by that Minister in respect of interest on or repayment of principal of any such advances shall be paid into the Exchequer.

(5) In relation to sums received by the Minister of Food in respect of interest on or repayment of principal of any such advances as are mentioned in subsection (1) of this section, section eighteen of the principal Act (which relates to accounting for receipts of the responsible Minister) shall apply as originally enacted, and not as amended by section one of this Act, as if those sums were sums received by that Minister under section thirteen of that Act.

(6) In this Act "the Queensland Corporation" means the Queensland-British Food Corporation constituted under an Act of the Parliament of Queensland entitled the Queensland-British Food Production Act of 1948, and "the Queensland Act" means that Act.

Citation,  
construction  
and commence-  
ment.

5.—(1) This Act may be cited as the Overseas Resources Development Act, 1951, and this Act and the Overseas Resources Development Acts 1948 and 1949 may be cited together as the Overseas Resources Development Acts, 1948 to 1951.

12, 13 & 14  
Geo. 6. c. 65.

(2) This Act and the Overseas Resources Development Act, 1949, shall be construed as one with the Overseas Resources Development Act, 1948.

(3) This Act shall come into force on the first day of April, nineteen hundred and fifty-one.

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## CHAPTER 21

An Act to authorise the making of orders extending or amending the provisions of the Alkali, &c., Works Regulation Act, 1906, in their application to Scotland; and to make provision for authorising inspectors under that Act in Scotland to inspect any works which are of a character likely to cause the evolution of noxious or offensive gases. [21st March 1951.]